

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JONAEL ABREU,

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER HANSEL SALCEDO, SHIELD #
16775, POLICE OFFICER MICHAEL
LEVY, SHIELD NO.: 29982 and
police officers whose names are
yet unknown,

INDEX NO.:

Defendants.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: June 23, 2020

Defendants' address: 1 Police Plaza, New York, NY & 34TH Precinct

**BASIS OF VENUE-LOCATION OF INCIDENT-THAYER & DYCKMAN ST., NY
COUNTY**


ELLIOT H. FULD
930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution, and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$1,000,000.00 with interest from January 3, 2020 and the costs and disbursements of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JONAEL ABREU,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER HANSEL SALCEDO, SHIELD #
16775, POLICE OFFICER MICHAEL
LEVY, SHIELD NO.: 29982 and
police officers whose names are
yet unknown,

INDEX NO.:

Defendants.

JONAEL ABREU, by his attorney, Elliot H. Fuld, complains of the
defendants and allege, upon information and belief as follows:

1. JONAEL ABREU was, at the times of the incident described in this
Complaint, a resident of the City and State of New York, County of
Bronx.

2. POLICE OFFICER HANSEL SALCEDO, SHIELD # 16775, POLICE OFFICER
MICHAEL LEVY, SHIELD NO.: 29982 and police officers whose names are
yet unknown were and at all times stated herein and upon information
and belief, is police officer with the New York City Police Department
with regards to the incidents described herein.

3. POLICE OFFICER HANSEL SALCEDO, SHIELD # 16775, POLICE OFFICER MICHAEL LEVY, SHIELD NO.: 29982 and police officers whose names are yet unknown were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, POLICE OFFICER HANSEL SALCEDO, SHIELD # 16775, POLICE OFFICER MICHAEL LEVY, SHIELD NO.: 29982 and police officers whose names are yet unknown, were employees of the New York City Police Department and were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about January 3, 2020, at approximately 1:50 A.M., Defendants forcibly seized and detained the Plaintiff herein in the area of Thayer Street and Dyckman Street in New York County.

7. After detaining the Plaintiff, police officers threw Plaintiff

against a wall and continued to detain the Plaintiff without having any evidence that he had committed any crime of violation of law. When Plaintiff objected to the false arrest, police officers handcuffed Plaintiff's right hand and violently twisted Plaintiff's left arm causing his shoulder to pop. The officers then commenced a thorough beating of Plaintiff with their knees on Plaintiff's chest while Defendants punched Plaintiff about the face, breaking his nose and cheek bones.

8. Police officers accused and charged Plaintiffs with possession a marijuana and resisting arrest under docket number CR-000244-20NY.

9. At the time of the arrest and detention those police officers who were present were aware or should have been aware that Plaintiff did not commit any crime. Upon information and belief, the officers stopped Plaintiff because he was a male Hispanic walking with other male Hispanics on a street at approximately 1:50 A.M. in New York County.

10. The arrest and detention of the Plaintiff by those officers and the filing of criminal charges was without probable cause and without basis in law or in fact.

11. As of the filing of this Complaint, Plaintiff has had to appear in court for the criminal charges on five occasions and will need to make further appearances.

12. On or about January 14, 2020, Plaintiff, by counsel, served upon the Comptroller of the City of New York, Notices of Claim as required by the General Municipal Law and the City has held the statutory 50-h hearing on April 8, 2020.

13. That more than thirty (30) days have elapsed since the service of that Claim and the adjustment or payment thereof has been neglected or refused.

14. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of January 3, 2020, imprisonment of Plaintiff that same day and the malicious prosecution which continues to date.

15. As a result of the false arrest of Plaintiff by defendants, Plaintiffs demands judgment against the Defendants and was damaged in the amount of One Million (\$1,000,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiffs repeat all the allegations contained in paragraphs "1" through "15" inclusive as though more fully set forth herein.

17. As a result of Defendants' actions, Plaintiff was falsely imprisoned.

18. That at the time of Plaintiffs' imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been incarcerated.

19. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiffs' release.

20. That as a result of Defendants' action, Plaintiffs was compelled to, *inter alia*, lose educational opportunities and suffer embarrassment and humiliation.

21. In view of the foregoing, Plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiffs repeat all the allegations contained in paragraphs "1" through "21" inclusive as though more fully set forth herein.

23. After Plaintiff's false arrest on January 3, 2020 and the malicious prosecution which followed, Plaintiff was required to make appearances in Criminal Court.

24. That during the pendency of those charges, the Defendants were well aware that it did not appear that Plaintiffs had committed any crime or violation.

25. Irrespective of that, the Defendants continued to pursue criminal charges against Plaintiffs, seeking to have the Plaintiffs plead guilty to a lesser charge.

26. Plaintiff refused to plead guilty.

27. The Defendants' prosecution of Plaintiffs was conducted with malice or with such reckless disregard for the true set of facts underlying the "complaint" and the various violations that said reckless disregard constituted malice.

28. In view of the foregoing, Plaintiffs has been damaged in the amount of One Million (\$1,000,000.00) Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

29. Plaintiffs repeat all the allegations contained in paragraphs "1" through "28" inclusive as though more fully set forth herein.

30. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

31. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

32. The Defendants have in the past made it a practice and policy to harass, detain and seize young Hispanic and African-American males who act in a law-abiding manner solely because of their race and/or ethnicity.

33. The Defendants have in the past made it a practice to stop,

detain and harass young Hispanic and African-American males without any justification or just cause.

34. The Defendants perform these unlawful seizures to provoke citizens such as Plaintiff and other similarly situated young male Hispanics and African Americans into protest over such unlawful seizures.

33. At the time of that unlawful and unjustified detention, the Defendants then aggravate the situation by claiming that citizens such as Plaintiff and other similarly situated young male Hispanics and African Americans are acting "disorderly" or "resisting arrest" when in fact these citizens are simply exercising their constitutional rights by objecting to being unlawfully seized and manhandled by Defendants.

34. That at the time of the unlawful false arrest, false imprisonment and malicious prosecution herein, Defendants had already made it a practice and continue to make it a practice and policy of their daily activities to randomly harass, stop, detain and seize young Hispanic and African-American males on the street and in their own apartment buildings.

35. That said discriminatory and race based actions by the Defendants do not occur in higher income areas populated and frequented by fewer young Hispanics and African American males.

32. As a result of the foregoing, the Plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$2,000,000.00; and
- b. On the Second Cause of Action, the sum of \$2,000,000.00; and
- c. On the Third Cause of Action, the sum of \$2,000,000.00; and
- d. On the Fourth Cause of Action, the sum of \$2,000,000.00, as well as attorneys' fees because of the civil rights violations; and For punitive damages in the amount of \$1,000,000.00.

Dated: June 23, 2020



Elliot H. Fuld
Attorney for Plaintiffs
930 Grand Concourse-Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

ELLIOT H. FULD, affirms and says: I am an attorney in the State of New York and am the attorney for JONAE ABREU herein, and I verify under the penalties of perjury that all the

statements contained in the attached Complaint have been obtained through a review of documents pertaining to this case and from conversations with the Plaintiffs and, upon information and belief, are true. I am making this Verification because, at present, Plaintiffs are unable to appear at my office because of COVID-19 restrictions.

Dated: June 23, 2020



ELLIOT H. FULD